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CASE #	CASE NAME	HEARING NAME
CVME2513565	JAFARI VS CILING	MOTION FOR VERIFIED ACCOUNTING AND LIMIT ENFORCEMENT

Tentative Ruling: The Court **DENIES** Defendants' Motion for Verified Accounting and to Limit Enforcement.

FACTUAL / PROCEDURAL CONTEXT

Plaintiff brought this creditor's suit to attempt to enforce the judgment entered April 13, 2021, in favor of Plaintiff and against Sammy Ciling and Anke Ciling for, among other things, breach of fiduciary duty, fraud, conversion, and identity theft. That judgment (hereafter "the LA Judgment") is now more than \$4.2 million.

Defendants move for an order: (1) Compelling Plaintiff to provide a full, verified accounting under oath; (2) Limiting or staying all enforcement actions pending such accounting; (3) Requiring credit for all funds collected, revenues received, and assets transferred; (4) Preventing further accumulation of enforcement-based damages without transparency; (5) Granting such other relief as the Court deems just and proper.

Defendants contend that: (1) Plaintiff took control of the financial pipeline; (2) Plaintiff cannot enforce while refusing to account; (3) escalating debt without accounting is fundamentally unfair; (4) continued enforcement without an accounting causes irreparable harm; (5) equity requires immediate accounting; and (6) partial discovery evidence of collection demonstrates the need for a verified accounting.

In Opposition, Plaintiff argues: (1) the motion is based on a false factual premise; (2) Sammy Ciling has not shown entitlement to any accounting or stay of enforcement; (3) the creditor's suit statutes do not support Sammy Ciling's requested relief; and (4) the cited authorities are distinguishable and do not support this motion.

ANALYSIS

I. Motion based on false premise

Sammy Ciling's principal claim is that Plaintiff supposedly obtained control over "businesses, financial systems, accounts receivable, and physical facilities," and therefore must account for recoveries. That contention is unrelated to what happened in this case. Also, it appears to be incorrect. (See attached Declarations of Jafari and Asher explaining what was collected and credited toward the LA Judgment).

Prior to this creditor's suit, Plaintiff was a cross-complainant in the prior creditor's suit: *Karl Lowry vs. Hope and Trust Trading, Inc.*, Riverside Superior Court case #CVSW 220-7261 ("the first creditor's suit"). That court issued two judgments in that action on August 12, 2025 – a default judgment by the court as well as a judgment by stipulation. To obtain the default judgment, Plaintiff proved that Sammy Ciling owned

two agricultural properties in the name of a sham entity, Tekfur LLC. That court purportedly disregarded the fraudulent conveyance to Tekfur LLC and transferred the two agricultural properties to Plaintiff in partial satisfaction of the LA Judgment. In the first creditor's suit, Plaintiff proved that the two properties had a fair market value of \$950,000. The default judgment ordered the Plaintiff to credit that amount against the LA Judgment. Even though Plaintiff received title to those properties, Sammy Ciling has refused to surrender possession of those properties. There is presently pending a motion to enforce the default judgment. Additionally, Plaintiff acknowledges that he has been able to freeze (but not receive) less than \$5000 in bank accounts held at the defendant bank.

Defendants contend that other than the land and the minimal cash, no other assets, accounts, receivables, revenues, or funds were recovered; the parcels have not been sold; and no cash proceeds have been realized because Sammy Ciling continues to interfere with Plaintiff's enforcement of the LA Judgment.

II. Threshold Issue: Defendants have not established entitlement to an accounting or stay of enforcement

An accounting is an equitable remedy that can be asserted in an independent lawsuit, not in a motion. Accounting is not a discovery shortcut or the right to obtain a stay of judgment enforcement without posting a bond. Accounting is proper only where the facts show a relationship and transactions that make such relief appropriate; it is not available on speculation or as a means to force the opposing party to disprove imaginary credits. (See *Teselle v. McLoughlin* (2009) 173 Cal. App. 4th 156 ; *Kim v. Westmoore Partners, Inc.* (2011) 201 Cal. App. 4th 267.) Here, the Ciling defendants have not shown they are entitled to an accounting. A party seeking a credit must show an actual basis for the credit; a generalized belief that something may have been collected is not enough.

III. The creditor's suit statutes do not support an accounting

The creditor's suit statutes do not give a judgment debtor a freestanding right to force a "verified accounting" whenever he suspects the creditor may have recovered something. Per CCP § 708.210, a creditor's suit is brought against a third person holding property in which the debtor has an interest or owes money to the debtor. Per CCP § 708.280, the court determines the claim and any exemption issues in the ordinary statutory framework. Nothing in those provisions authorizes the debtor to obtain a stay of all enforcement based on unsupported allegations that the creditor may have received undisclosed assets elsewhere.

Sammy Ciling's motion relies on *Teselle v. McLoughlin* (2009) 173 Cal. App. 4th 156, but *Teselle* does not authorize the relief sought here. *Teselle* addressed the availability of an accounting in a traditional equitable context; it did not hold that a judgment debtor can demand, in the context of a motion in a creditor's suit, a blanket accounting from a judgment creditor based on speculation that unidentified credits may exist.

The Court DENIES the Motion.